



Red Hat

Special Bid Order Form

NA

Red Hat, Inc.
100 E. Davie Street
Raleigh, North Carolina
27601 USA

Partner Information		Red Hat Sales Representative	
Company Name	Arrow Enterprise Computing Solutions Inc. ("Partner" or "you")	Contact Name	Jessica Chang
Bill To Acct. #	6313925		
Contact Name	Luke Nemrava		
Email	IBM_REDHAT_SW@arrow.com	Email	jchang@redhat.com
Reseller Information		End User Information	
Company Name	Hcl America Inc. ("Reseller")	Company Name	Blue Yonder, Inc. ("End User")
Address	3333 Warrenville Rd Ste 750 Lisle, IL 60532-1331 US	Address	15059 N Scottsdale Rd Suite 400 Scottsdale, AZ 85254 US
Contact Name	Satendra Guar	Contact Name	Greg Mersberger
Email	satendra.gaur@hcl.com	Email	greg.mersberger@blueyonder.com
		RHN #	rhsr2021
Quote Information			
Opportunity Number	6137202	Quote Expiration Date	2024-06-28
Quote Reference #	Q-723347		
Agreement Tracking #	SBOF-10692	Contact Name	Greg Mersberger

Special Bid Summary							
Quantity	Unit*	Term	SKU	Red Hat Products Purchased	Per Unit Fee (USD)	Per Unit Prorated Fee (USD)	Total Fee (USD)
1458	PHYSICAL NODE OR VIRTUAL NODE	2024-06-25 - 2027-06-24	RH00003F3	Red Hat Enterprise Linux Server, Premium (Physical or Virtual Nodes)	1,313.33	1,313.33	1,914,835.14
2602	PHYSICAL NODE OR VIRTUAL NODE	2024-06-25 - 2027-06-24	RH00004F3	Red Hat Enterprise Linux Server, Standard (Physical or Virtual Nodes)	807.82	807.82	2,101,947.64
*As defined in the applicable appendix					Total excl of any taxes:		USD 4,016,782.78

Applicable Agreement
Partner and Red Hat (the "parties") entered into a Partner Agreement dated September 18, 2023 including any amendments (collectively, the "Agreement"). The parties agree that this Special Bid Order Form is subject to the terms and conditions of the Agreement.

Additional Terms

Partner will deliver Red Hat a purchase order for the Red Hat Products described in the Special Bid Summary on or before the Quote Expiration Date. Upon receipt of the purchase order, Red Hat will provide the Red Hat Products identified in the Special Bid Summary above to the Partner on the terms described in this Special Bid Order Form for the End User identified above. The terms agreed to herein apply only to the transaction described on this Special Bid Order Form. Partner will require the Reseller to require the End User to accept or otherwise assent (in a manner that binds the End User) to (a) the End User pass through terms contained herein and (b) the Enterprise Agreement and the associated appendices set forth at <https://www.redhat.com/en/about/agreements>.

Please sign below and send a .pdf file of this Special Bid Order Form by e-mail to jchang@redhat.com.

Remix

Partner on End User's behalf, or End User, may change or reallocate the number of Units of paid Software Subscriptions set forth in the Special Bid Summary once per year on the anniversary of the earliest start date of the Software Subscriptions set forth in the Special Bid Summary above (each, a "**Remix Date**") (each such change, a "**Remix**"). Support Subscriptions, Professional Services, Consulting Subscriptions, Consulting Units, Training and Training Units are ineligible for Remix. In order to effect a Remix, Partner on behalf of End User, or End User, must provide Red Hat with a written Remix request that contains the SKUs and pricing set forth in the Special Bid Summary, together with a comprehensive listing of all Units of Software Subscriptions deployed by End User, no later than sixty (60) days prior to the applicable Remix Date. Each Unit of the Red Hat Products listed in the Special Bid Summary above can be changed or reallocated in only one Remix over the term of this Special Bid Order Form.

No Remix request will be granted, unless, if after giving effect to such Remix, the total amount payable to Red Hat is greater than or equal to the original total amount net of any discounts (both annually and in the aggregate) stated in the Special Bid Summary above. No refunds will be provided hereunder. Any replacement Subscriptions will be co-terminated to the original Subscription terms. A Remix is prospective only. Partner will provide a purchase order to Red Hat for any amount in excess of the original annual totals. Regardless of whether Red Hat receives such purchase order, Partner will be invoiced by Red Hat and Partner will make payment to Red Hat pursuant to the applicable terms.

Buffer and True-Up

In addition to the Units of Software Subscriptions purchased in the Special Bid Summary above (the "**Base Units**"), Red Hat will provide End User with twenty percent (20%) additional Units (rounded up to the nearest whole Unit) over the number of Base Units for each eligible Software Subscription (such additional units, the "**Buffer Units**"), for each Reporting Period (as defined below), subject to the following:

- A. **Reporting.** During the term of this Special Bid Order Form, Partner or End User agrees to submit a written report (each, a "**True-Up Report**") every three (3) months from the earliest Software Subscription(s) start date as set forth in the Special Bid Summary (each, a "**Reporting Period**"). Partner or End User will email the True-Up Reports to na-seap@redhat.com. The True-Up Reports will include the following information:
 - i. End User name and contact information, and
 - ii. The total number of Units of each SKU and/or product name in the Special Bid Summary deployed during the applicable Reporting Period.

The Reporting Periods are as follows:

Reporting Period 1 begins on the Effective Date and ends 3 Months from Effective Date
 Reporting Period 2 begins at the end of Reporting Period 1 and ends 6 Months from Effective Date
 Reporting Period 3 begins at the end of Reporting Period 2 and ends 9 Months from Effective Date
 Reporting Period 4 begins at the end of Reporting Period 3 and ends 12 Months from Effective Date
 Reporting Period 5 begins at the end of Reporting Period 4 and ends 15 Months from Effective Date
 Reporting Period 6 begins at the end of Reporting Period 5 and ends 18 Months from Effective Date
 Reporting Period 7 begins at the end of Reporting Period 6 and ends 21 Months from Effective Date
 Reporting Period 8 begins at the end of Reporting Period 7 and ends 24 Months from Effective Date
 Reporting Period 9 begins at the end of Reporting Period 8 and ends 27 Months from Effective Date
 Reporting Period 10 begins at the end of Reporting Period 9 and ends 30 Months from Effective Date
 Reporting Period 11 begins at the end of Reporting Period 10 and ends 33 Months from Effective Date

- B. **Term.** The "**Start Date**" of the term for any deployed Buffer Units will be the end of the applicable Reporting Period. The Buffer Units will co-terminate on the same date as the latest-expiring Units in the Special Bid Summary ("**Co-termination Date**").
- C. **Invoicing and Payment.** Together with the True-Up Report, Partner will provide a purchase order to Red Hat for all deployed Buffer Units. Regardless of whether Partner provides such purchase order, Red Hat may invoice Partner for deployed Buffer Units, and Partner shall pay for such deployed Buffer Units pursuant to the terms of this Special Bid Order Form. The Fees for the Buffer Units are the Per Unit Fees listed in this Special Bid Order Form, prorated for the period of time between the Start Date and the Co-termination Date.
- D. **Exclusions.** No Buffer Units will be provided for any Support Subscriptions, Professional Services, Consulting Subscriptions, Consulting Units, Training or Training Units. Software Subscriptions are the only Red Hat Products that may be eligible for the Buffer & True-up program.

For the avoidance of doubt, if Partner on behalf of End User, or End User, has the right (and chooses) to exercise both a True Up and Remix on the same date, the True Up will occur first, prior to the Remix.

Payment

You agree to pay Red Hat the fees stated on this Special Bid Order Form pursuant to the terms of the Agreement.

In accordance with the Agreement and the payment terms above (if any), Red Hat will invoice Partner for fees in the amount of **\$4,016,782.78** as follows:

- 1. \$1,338,923.78 upon execution of this Special Bid Order Form.
- 2. \$1,338,923.78 upon the first anniversary of the execution of this Special Bid Order Form.
- 3. \$1,338,935.22 upon the second anniversary of the execution of this Special Bid Order Form.

Renewal and Start Date

The initial term of the Subscription Services or other Services purchased under this Special Bid Order Form is described in the Special Bid Summary above. After this initial term, the term for Subscription Services may be renewed upon mutual agreement. If the start date of the Subscription Service or Services is not written in the Special Bid Summary, the term begins on the date this Special Bid Order Form has been fully executed by the parties or, if later, the date the Subscription Services are entitled in the End User's account.

Ordering Additional Subscriptions or Services

Partner may order additional quantities of the Subscription Services (coterminated and prorated to the end of the current term) or other Services described in the Special Bid Summary for the End User at the Per Unit Fee in the Special Bid Summary above by issuing purchase orders to Red Hat specifying the ordered items and referencing this Special Bid Order Form by date. By doing so, you agree that each additional order is governed exclusively by the terms of this Special Bid Order Form and the Agreement.

Each party has executed this Special Bid Order Form by its duly authorized representative.

Partner


Signature

Brenda J McGhee

Printed Name

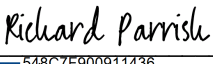
Senior Sales Operations Manager

Title

6.28.2024

Date

Red Hat, Inc.

DocuSigned by:

Signature

Richard Parrish

Printed Name

Senior Director, Americas Accounting

Title

6/28/2024

Date

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 6/28/2024